

		defendants could usurp. GAB Business Services, Inc., supra, 83 Cal.App.4th at 421. ISSUE NOS. 3-7: Since Balt USA does not have a lawful claim to the electrocautery device, the Fifth, Sixth, Seventh, Ninth, and Tenth Causes of Action fail as a matter of law as to the electrocautery device. ROA 1670. For the reasons discussed in Issue No. 2, supra, summary adjudication of these issues is granted; Balt USA has no lawful claim which can support these claims. Request for Judicial Notice Defendants’ unopposed request for judicial notice of Exhibits 1, 6-8, and A-F (ROA 1664) is granted. Cal. Evid. Code §§ 452(c), (h), 453. Evidentiary Objections Plaintiff’s Objection No. 3, as to Sunenshine Decl. ¶ 11 is overruled. ROA 1874, 1903. Objection Nos. 1-2 pertain to the tinnitus stent device only and are part of the court’s ruling on that motion. For the reasons discussed above, defendants’ Objection No. 1 as to exhibits 136-138 is sustained on foundation and hearsay grounds. The court also finds the exhibits have not been authenticated are thus inadmissible. Defendants to give notice.
113	David Goldman v. LBG Real Estate Companies, LLC 2025-01498037	1. Motion - Petition to Determine Validity of Third-Party Claim of LBG Medford, LLC (ROA#154) 2. Motion - Petition to Determine Validity of Third-Party Claim of LBG Medford DN, LLC (ROA#155) 3. Motion - Petition to Determine Validity of Third-Party Claim of LBG Chula WM, LLC (ROA#157) 4. Motion to Seal (ROA#141) THIRD PARTY CLAIMS: Plaintiff/Judgment Creditor David Goldman’s Petitions for Hearing to Determine the Validity of Third-Party Claims filed by (1) LBG Chula WM, LLC; (2) LBG Medford, LLC; and (3) LBG Medford DN, LLC are DENIED as untimely filed. Accordingly, the Court is without jurisdiction to hear the Petitions. Under the Enforcement of Judgments Law (EJL) (Code Civ. Proc. [CCP] §§ 680-010-724.726), “[w]here personal property has been levied upon under . . . a writ of execution,” “[a] third person claiming ownership or the right to possession of property may make a third-party claim under this chapter . . . if the interest claimed is superior to the creditor’s lien on the property.” (CCP, § 720.110, subd. (b).) “[E]ither the creditor or third person may petition the court for a hearing to determine the validity of the third-party claim and the proper disposition of the property that is the subject of the claim,” so long as the petition is filed

“[n]ot later than 15 days after the third-party claim is filed with the levying officer.” (CCP, § 720.310, subd. (a).)

When the petition is not timely filed, “the court [i]s without jurisdiction to hear the matter.” (*Ballagh v. Williams* (1942) 50 Cal.App.2d 303, 303 [decided under earlier version of statute]; *Michael v. Burge* (1959) 176 Cal.App.2d 128, 130 [“We have concluded that appellants’ contention that the court had no jurisdiction to hold a hearing on the third party claims must be sustained” because “respondent’s petition to determine the title was not filed within [the deadline] after the delivery of the third party claims to the officer as required by [an earlier version of the statute]; see also *Commercial Credit Plan, Inc. v. Gomez* (Super. Ct., App. Dept., 1969) 276 Cal.App.2d Supp. 831, 834 [“The law is so clear that when 15 days have run from the filing of the third party claim and no petition for hearing has been filed, the trial court in which the suit was brought loses jurisdiction to hear the summary proceeding”; also decided under earlier version of statute].)

Here, according to the Orange County Sheriff’s date & time stamp on the third-party claims, the Third-Party Claimants filed their Verified Notices of Third Party Claims with the Sheriff, i.e., the levying officer, on 1/28/2026. (ROA #157, Exh. E [LBG Chula WM’s Third-Party Claim, signed 1/27/2026 and file-stamped by O.C. Sheriff on 1/28/2026]; ROA #154, Exh. E [LBG Medford’s Third-Party Claim, signed 1/27/2026 and file-stamped by O.C. Sheriff on 1/28/2026]; ROA #155, Exh. E [LBG Medford DN’s Third-Party Claim, signed 1/27/2026 and file-stamped by O.C. Sheriff on 1/28/2026].)

Fifteen (15) days after 1/28/2026 was 2/12/2026, which was a court holiday, so the deadline to file the Petition was 2/13/2026. (CCP, §§ 12, 12a.) However, Goldman did not file the instant Petitions with the Court until 2/20/2026. (ROA #154-155, 157.)

The Court notes that Third Party Claimants specifically raised the untimeliness of Goldman’s Petitions in their opposition. Goldman failed to timely file a reply to rebut these contentions.

Therefore, the Court is without jurisdiction to hear the Petitions.

Clerk to give notice.

MOTION TO SEAL:

Third Parties Leslie Lundin and Douglas Beiswenger’s Motion to Seal Documents Filed in Support of David Goldman’s Ex Parte Application for Order Permitting Consideration of Newly-Discovered Evidence in Support of Motion for Receiver (ROA #141) is **GRANTED**.

Third Parties seek to seal/redact from the public record two categories of information: (1) attorney-client privileged information relating to the amount of attorneys’ fees paid in ongoing litigation and (2) other confidential financial information reflected in the subject bank statements which are subject a right to privacy.

“Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court [CRC], rule 2.550(c).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) [t]here exists an overriding interest that overcomes the right of public access to the record; (2) [t]he overriding interest supports sealing the record; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest.” (CRC, rule 2.550(d).)

However, this rule “does not apply to records that are required to be kept confidential by law” (CRC, rule 2.550(a)(2)), such as “[a] document which is protected by the lawyer-client privilege[, which] is not subject to the [CRC rule 2.550(d)] findings requirements.” (*Huffy Corp. v. Super. Ct.* (2003) 112 Cal.App.4th 97, 108).

Overriding interests include a substantial probability that the movant’s privacy rights will be adversely affected if the record is not sealed. (See, e.g., *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 503, internal quotes & citations omitted [right to privacy “extends to one’s confidential financial affairs” and “embraces confidential financial information in whatever form it takes, whether that form be tax returns, checks, statements, or other account information”]; *Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Super. Ct.* (2006) 137 Cal.App.4th 579, 594 [“Although corporations have a lesser right to privacy than human beings and are not entitled to claim a right to privacy in terms of a fundamental right, some right to privacy exists”]; see also *Universal City Studios, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1273, 1286 [denying motion to seal due to public disclosure, but finding that normally, sealing is appropriate where “information involves confidential matters relating to the business operations of defendant” and “public revelation of these matters would interfere with its ability to effectively compete in the marketplace”].)

Here, as to the first category of information at issue in the instant motion to seal, on 5/15/2026, the Court sustained Third Parties’ attorney-client privilege objections related to the documents at issue and ordered that any papers filed by Goldman containing the privileged information be stricken from the record. (ROA #226.) Thus, granting the motion to seal this information is consistent with the Court’s previous ruling, and the Court need not make additional express findings under CRC, rule 2.550(d).

As to the second category of information at issue in the instant motion to seal, the Court finds that Third Parties have proved facts that establish: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (CRC, rule 2.550(d); see also ROA #119 [Lundin Decl.], ¶¶ 6-7; ROA #121 [Fletcher Decl.], ¶¶ 24, 27.)

Accordingly, the Court **ORDERS** that:

		1. ROA #76, 78, 82, 84, 86, 88, 90, and 92 be stricken from the Court’s file (sealed) so that the public may not access them; 2. The unredacted replacement versions of these documents, which were lodged by Third Parties on 2/5/2026 concurrently with this motion to seal (see ROA #129) shall be placed under permanent seal; and 3. Third Parties’ proposed redacted public versions of ROA #78, 84, 82, 86, 88, 90—which were filed at ROA #125, 135, 133, 123, 137, and 127—shall be filed in the public file. The Court notes that Third Parties previously prepared and submitted a proposed order striking the attorney-client privileged information from the record in accordance with the Court’s 5/15/2026 minute order. (ROA #232 [proposed order].) The substance of that proposed order overlaps substantially with the instant ruling on Third Parties’ motion to seal. Accordingly, the Court ORDERS Third Parties to submit a single, combined, omnibus proposed order that incorporates the Court’s 5/15/2026 ruling and the instant ruling. Moving party shall give notice.
114	Xiong vs. Jeunesse Global, LLC	Motion to be Relieved as Counsel of Record Attorneys Jeffrey Jacobson, David Koller, and Joie Hand of law firm Faegre Drinker Biddle & Reath LLP’s motion to be relieved as counsel of record for Defendant Jeunesse Global, LLC dba Jeunesse, LLC (“Jeunesse”) is GRANTED, effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.) Moving counsel shall lodge with the Court an updated proposed order that lists the correct department number and judicial officer assigned to this case. Moving counsel shall also update the order to reflect the currently scheduled hearing on the motion to file an amended complaint along with the below OSC. An OSC hearing is set for August 27, 2026 at 2 p.m. in Department CX102. At the hearing, the Court will strike Defendant Jeunesse’s answer for its failure to appear through counsel unless it (1) substitutes in new counsel before the hearing or (2) appears at the hearing and shows good cause otherwise. (See <i>Merco Construction Engineers, Inc. v. Mun. Ct.</i> (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145, 1150 [same, and “court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time”].) Moving counsel shall give notice of this ruling.